

[1 EDW. 8. & Ministry of Health [Ch. lxxiii.]
1 GEO. 6.] Provisional Order Confirmation
(Maidenhead Water) Act, 1937.



CHAPTER lxxiii.

An Act to confirm a Provisional Order of the Minister of Health relating to the Maidenhead Waterworks Company. A.D. 1937.
[13th July 1937.]

WHEREAS under the provisions of the Gas and Water Works Facilities Act 1870 and the Gas and Water Works Facilities Act 1870 Amendment Act 1873 the Minister of Health has made a provisional order which needs confirmation by Parliament : 33 & 34 Vict. c. 70. 36 & 37 Vict. c. 89.

Be it therefore enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows :—

1. The order of the Minister of Health which as amended is set out in the schedule to this Act is hereby confirmed and shall have full validity and force. Order in schedule confirmed.

2. This Act may be cited as the Ministry of Health Provisional Order Confirmation (Maidenhead Water) Act 1937. Short title.

A.D. 1937.

SCHEDULE.

MAIDENHEAD WATER.

Provisional Order under the Gas and Water Works Facilities Act 1870 and the Gas and Water Works Facilities Act 1870 Amendment Act 1873 empowering the Maidenhead Waterworks Company to raise additional capital and for other purposes.

THE MINISTER OF HEALTH in pursuance of the powers given to him by the Gas and Water Works Facilities Act 1870 the Gas and Water Works Facilities Act 1870 Amendment Act 1873 and of all other powers enabling him in that behalf hereby orders as follows :—

PART I.

PRELIMINARY.

Short and
collective
titles.

1.—(1) This order may be cited as the Maidenhead Water Order 1937.

(2) The Maidenhead Water Acts and Orders 1875 to 1928 and this order may be cited together as the Maidenhead Water Acts and Orders 1875 to 1937.

Commence-
ment of
order.

2. This order shall come into operation on the date of the Act of Parliament confirming it.

Incorporation of
Acts.

3.—(1) The following enactments (so far as the same are applicable for the purposes and are not inconsistent with the provisions of the Maidenhead Waterworks Acts and Orders 1875 to 1937) are hereby incorporated with this order (namely) :—

(a) the Lands Clauses Acts (except the provisions thereof with respect to the purchase and taking of lands otherwise than by agreement and with respect to the entry upon lands by the promoters of the undertaking);

(b) the Waterworks Clauses Acts 1847 and 1863 (as amended by section 58 of the Act of 1928);

10 & 11 Vict.
c. 17.
26 & 27 Vict.
c. 93.

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(c) the clauses and provisions of the Companies Clauses Consolidation Act 1845 as amended by subsequent Acts with respect to the following matters (namely) :— A.D. 1937.
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PART I.
—cont.

- the distribution of the capital of the company into shares;
- the transfer or transmission of shares;
- the payment of subscriptions and the means of enforcing the payment of calls;
- the forfeiture of shares for non-payment of calls;
- the remedies of creditors of the company against the shareholders;
- the borrowing of money by the company on mortgage or bond;
- the consolidation of shares into stock;
- the general meetings of the company and the exercise of the right of voting by the shareholders;
- the appointment and duties of auditors;
- the keeping of accounts and the right of inspection thereof by the shareholders;
- the making of dividends;
- the giving of notices; and
- the provision to be made for affording access to the special Act by all parties interested;

(d) part I (relating to cancellation and surrender of shares) part II (relating to additional capital) and part III (relating to debenture stock) of the Companies Clauses Act 1863 as amended by subsequent Acts (except the words “and to the same amount as” in section 22 of the said Act of 1863). 26 & 27 Vict. c. 118.

(2) For the purpose of such incorporation the expression “special Act” where used in the said Acts shall be construed to mean this order and the term “company” shall mean the undertakers.

4.—(1) In this order unless the context otherwise requires the several words terms and expressions to which by any Act wholly or partly incorporated with this order and by the Gas and Water Works Facilities Act 1870 meanings are assigned have the same respective meanings. Interpretation.

(2) In this order unless the context otherwise requires—

“the undertakers” means the Maidenhead Waterworks Company;

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—cont.

18 & 19
Geo. 5.
c. lxxxi.

“the undertaking” means the undertaking of the undertakers as for the time being authorised;

“the directors” means the directors of the undertakers;

“the Act of 1928” means the Maidenhead Water Act 1928;

“the existing Acts and orders” means the Maidenhead Water Acts and Orders 1875 to 1928;

“the Minister” means the Minister of Health;

“the commencement of this order” means the date upon which this order comes into operation.

PART II.

FINANCIAL PROVISIONS.

Power to
undertakers to
raise additional
capital.

5. In addition to the capital already authorised to be raised by the undertakers they may from time to time raise additional capital not exceeding in the whole thirty thousand pounds by the creation and issue of new ordinary shares or stock or new preference shares or stock or wholly or partly by one or more of those modes respectively :

Provided that the undertakers shall not under the powers of this order—

(a) issue any shares or stock of less nominal value than ten pounds; or

(b) create and issue any greater nominal amount of capital than shall after taking into account the premiums or discounts (if any) which may be obtained or allowed respectively on the issue thereof be sufficient to produce the said sum of thirty thousand pounds :

Provided also that section 29 (New shares or stock to be sold by auction or tender) of the Act of 1928 shall be applicable to the additional share capital authorised by this order.

New stock
to be
subject to
same
incidents
as existing
shares or
stock.

6. Except as by this order otherwise provided the additional capital created by the undertakers under this order and the new shares or stock in that capital and the holders thereof shall be subject and entitled to the same powers provisions liabilities rights privileges and incidents whatsoever in all respects as if such additional capital were part of the existing capital of the undertakers of the same class or description and the new shares or stock were shares or stock in that capital :

Provided that except as otherwise expressly provided by the resolution creating the same no person shall be entitled to vote in respect of any such new shares or stock to which a preferential dividend shall be assigned.

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7. The undertakers shall not in any year declare or make out of their profits any larger dividend on the additional capital authorised by this order than seven pounds in respect of every one hundred pounds actually paid up of so much of such capital as may subject to the provisions of this order be issued as ordinary capital except so far as a larger dividend may at any time be necessary to make up the deficiency of any previous dividend in respect of the additional capital which shall have fallen short of the said seven pounds per centum per annum or than such dividend (not exceeding six pounds) in respect of every one hundred pounds actually paid up of so much of such capital as may be issued as preference capital.

A.D. 1937.

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PART II.
—cont.

Limit of
dividend
on addi-
tional
capital.

8. If in any year or (if the undertakers declare a dividend half-yearly) in any half-year the funds of the undertakers applicable to dividend shall be insufficient to pay the full amount of dividend at the maximum rate on each class of ordinary shares or stock in the capital of the undertakers a proportionate reduction shall be made in the dividend of each class.

Dividends
on different
classes of
ordinary
capital.

9. Any sum of money which may arise from the issue of any shares or stock under the provisions of this order by way of premium after deducting therefrom the expenses of and incident to such issue shall not be considered as profits of the undertakers but shall be expended in extending or improving the works of the undertakers or in paying off money borrowed or owing on mortgage by the undertakers and shall not be considered as part of the capital of the undertakers entitled to dividend.

Applica-
tion of
premium
arising on
issue of
shares or
stock.

10.—(1) In addition to any other sums which they are authorised by the existing Acts and orders to borrow the undertakers may subject to the provisions of this order borrow on mortgage of the undertaking any sum or sums not exceeding in the whole one-half of the amount of the additional capital which at the time of borrowing has been raised under the powers of this order.

Power to
borrow.

(2) No sum shall be borrowed in respect of any capital so raised until the undertakers have proved to a justice before he gives his certificate under section 40 of the Companies Clauses Consolidation Act 1845 that the whole of the capital in respect of which such sum is borrowed together with the premiums (if any) realised on the sale thereof has been fully paid up.

11. The undertakers shall not without the consent of the Minister pay interest at a higher rate than five per centum per annum in respect of any moneys borrowed on mortgage or any debenture stock issued under the authority of this order.

Limit of
interest on
money
borrowed.

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PART II.

—cont.

Debenture
stock.

Priority of
existing
mortgages.

12. The undertakers may create and issue debenture stock subject to the provisions of section 34 (Debenture stock) of the Act of 1928.

13. The principal moneys secured by all mortgages granted by the undertakers before the commencement of this order and subsisting at the commencement thereof shall during the continuance of such mortgages and subject to the provisions of the Act or order under which such mortgages were respectively granted have priority over the principal moneys secured by all mortgages granted by virtue of this order.

Priority of
mortgages
over other
debts.

14. All moneys raised or to be raised by the undertakers on mortgage or by the issue of debenture stock under the provisions of the existing Acts and orders and this order shall have priority against the undertakers and the property from time to time of the undertakers over all other claims on account of any debts incurred or engagements entered into by them after the commencement of this order :

Provided that nothing in this section shall affect any claim against the undertakers or their property in respect of any rent-charge granted or to be granted by them in pursuance of the Lands Clauses Acts or in respect of any rent or sum reserved by or payable under any lease granted or made to or vested in the undertakers which is entitled to rank in priority to or pari passu with the interest on their mortgages or debenture stock nor shall anything in this section contained affect any claim for land taken used or occupied by the undertakers for the purposes of the undertaking and works of the undertakers or injuriously affected by the construction thereof or by the exercise of any powers conferred on the undertakers.

Appoint-
ment of
receiver.

15. Section 37 (Appointment of receiver) of the Act of 1928 shall extend to mortgagees of the undertakers in respect of mortgages granted under this order.

Redeem-
able
preference
shares or
stock and
debenture
stock.

16.—(1) In this section unless the context otherwise requires—

“ stock ” means and includes preference shares or stock and debenture stock ;

“ issue ” includes re-issue ;

“ redeemable stock ” means any stock issued under the powers of this section so as to be redeemable ;

“ redeemed stock ” means any redeemable stock which has been redeemed and is available for issue under the provisions of this section.

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(2) Subject to the provisions of this section the directors may from time to time by virtue of this order and without further or other sanction issue so as to be redeemable any stock created by the undertakers after the commencement of this order and any redeemed stock :

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PART II.
—cont.

Provided that no redeemed stock shall be issued except for the purpose of effecting the redemption of redeemable stock under the provisions of this section unless the issue is authorised by a resolution of the undertakers passed at an extraordinary meeting convened for the purpose.

(3) Redeemable stock may be redeemed either by paying off the stock or by issuing to the holder of the stock (subject to his consent) other stock in substitution therefor and for the purpose of raising money to pay off or of providing stock in substitution for any redeemable stock the undertakers may create new stock or the directors may issue any redeemed stock so as to be redeemable or irredeemable as they may think fit :

Provided that—

(a) no new stock shall be created nor shall any redeemed stock be issued so as to make the total amount of any particular class of stock exceed the amount of stock of that class which the undertakers are for the time being authorised to create except during any necessary interval between the creation or (in the case of redeemed stock) the issue of the stock and completion of the redemption of the redeemable stock for the purpose of redeeming which the stock of such particular class is proposed to be so created or issued; and

(b) during such interval as aforesaid the amount raised by means of any preference shares or stock so created or issued shall not be deemed to be paid-up share capital for the purposes of any enactment regulating the borrowing powers of the undertakers.

(4) When any redeemable stock has been redeemed the amount (exclusive of any sum obtained by way of premium) which was last raised by its issue shall cease to be taken into account in calculating the extent to which the powers of the undertakers of raising money by the creation and issue of shares or stock in the capital of the undertakers or by borrowing on mortgage of the undertaking or by the creation and issue of debenture stock have been or may be exercised but nothing contained in this subsection or done in pursuance thereof shall affect the validity of any mortgage or debenture stock of which the grant or issue by the undertakers was lawful in the circumstances

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A.D. 1937. existing at the date of such grant or issue Provided that the
 — nominal amount of any stock issued solely in substitution for
 PART II. other stock shall be deemed to be the amount raised by such
 —cont. issue.

(5) Redeemable stock shall bear such rate of dividend or interest (not exceeding any maximum rate prescribed in respect of the particular class of stock) and shall be redeemable at such time and in such manner and subject otherwise to such terms and conditions as the directors may before the issue thereof determine :

Provided that the terms and conditions of redemption upon which any redeemable stock is issued shall be stated in any offer by the undertakers of such stock for sale and in the certificate of such stock and no term or condition of redemption which is not so stated shall be binding upon the holder of the stock.

(6) The undertakers shall not redeem out of revenue any redeemable stock but any discount allowed on the issue or any premium payable on the redemption thereof may be written off out of revenue.

(7) Any preference shares or stock issued solely in substitution for redeemable stock shall not be subject to the provisions of section 29 (New shares or stock to be sold by auction or tender) of the Act of 1928 as applied by this order.

(8) Subject to the terms of any resolution creating any redeemable preference stock or redeemable debenture stock issued by the undertakers before the commencement of this order the provisions of this section shall so far as applicable extend and apply to the redemption of any such stock or any part thereof and to the issue of stock for paying off or redeeming the same or of providing stock to be substituted therefor.

Applica-
 tion of
 money.

17. All moneys raised under this order including premiums shall be applied only to purposes to which capital is properly applicable.

PART III.

CONFIRMATION OF EXECUTION OF WORKS AND ACQUISITION OF LANDS.

Confirming
 construc-
 tion of
 existing
 waterworks
 and
 acquisition
 of lands.

18. The construction by the undertakers of the works next hereinafter described is hereby sanctioned and confirmed and the undertakers may maintain and use and from time to time alter improve enlarge extend renew reconstruct or discontinue all or any of the same and may retain hold and use for the purposes of and as part of the undertaking all or any of the lands referred to in this section which have been acquired or appropriated and used by the undertakers for the purposes of or in connection with the said

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works and the acquisition or appropriation of such lands by the undertakers is hereby sanctioned and confirmed. A.D. 1937.

The works and lands hereinbefore referred to are situate in the county of Berks and are—

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PART III.
—cont.

A service reservoir of the undertakers known as Malders Lane Reservoir in the parish of Cookham in the rural district of Cookham situate in the enclosure numbered 311 on the 1/2500 ordnance map (edition of 1925) Berkshire sheet XXIV.9;

A line or lines of pipes commencing in the said parish of Cookham at or in the said Malders Lane Reservoir and terminating in the borough of Maidenhead by a junction with the existing pipes of the undertakers in the London to Bath road at the junction with that road of All Saints Avenue;

A well and three boreholes in the borough of Maidenhead forming part of the well and pumping station of the undertakers (known as the Maidenhead Pumping Station) authorised by and described in the Maidenhead Water-works Act 1875 and constructed by the undertakers in, or under the lands described in the said Act of 1875 and acquired by the undertakers under that Act for the purposes of or in connection with such last-mentioned well and pumping station;

38 & 39 Vict.
c. xxxi.

together with all buildings machinery adits works and apparatus of whatever description constructed provided and used by the undertakers for or in connection with the said works or any of them :

Provided that any electrical works or apparatus constructed or maintained under this clause shall be so constructed maintained and used as to prevent interference with any telegraphic line (as defined by the Telegraph Act 1878) belonging to or used by the Postmaster General or with telegraphic communication by means of any such line.

41 & 42 Vict.
c. 76.

PART IV.

ADMINISTRATIVE PROVISIONS.

19. Notwithstanding anything in the Companies Clauses Consolidation Act 1845 or in the existing Acts and orders the undertakers may by a resolution of a general meeting at any time determine that the future ordinary meetings of the undertakers shall be held once only in each year in such month as the directors may from time to time determine and the undertakers may from time to time in like manner alter or rescind any such resolution.

Meetings of
undertakers
to be held
annually.

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 PART IV.
 —cont.

Payment
 of half-
 yearly
 interim
 dividends.

20.—(1) If and so long as the ordinary meetings of the undertakers shall be held once only in each year (in this section referred to as “the annual general meeting”)—

(a) the directors may on or after the thirtieth day of June in any year without the sanction or direction of a general meeting declare and pay out of the funds of the undertakers applicable to dividend a dividend in respect of the half-year ended on the said thirtieth day of June on any class of shares or stock in the capital of the undertakers at such rate per centum as the directors may think fit but no such rate shall as respects any ordinary shares or stock be greater than one-half the maximum annual rate of dividend on such shares or stock or as respects any preference shares or stock be greater than one-half the preferential annual rate of dividend assigned to such shares or stock;

(b) section 116 of the Companies Clauses Consolidation Act 1845 shall in its relation to the undertakers be read and have effect as if the words “preceding year” were substituted therein for the words “preceding half-year.”

(2) When in respect of any such half-year as aforesaid the directors exercise the powers conferred by paragraph (a) of subsection (1) of this section the only dividend (if any) to be declared at the next following annual general meeting on any class of shares or stock in the capital of the undertakers in relation to which such powers were exercised shall be a dividend in respect of the half-year ending next before the date of such annual general meeting at such rate as the undertakers may approve not exceeding the rate of dividend requisite to enable the undertakers to pay in the case of any ordinary shares or stock the balance of the dividend which can lawfully be paid in respect of the year in which such half-year occurs and in the case of any preference shares or stock the balance of the dividend payable in respect of the year in which such half-year occurs at the preferential annual rate assigned thereto and section 120 of the Companies Clauses Consolidation Act 1845 shall in its application to the undertakers be read and have effect accordingly.

As to
 appoint-
 ment of
 proxies.

21. Notwithstanding anything in the Companies Clauses Consolidation Act 1845 the attorney of any holder of shares or stock duly authorised in writing may appoint a proxy to vote for and on behalf of the holder and for that purpose may execute on behalf of the holder the necessary forms of proxy :

Provided that except in cases where the instrument appointing the attorney shall have been previously registered with the undertakers the same or (in the case of an instrument deposited in the Central Office of the Supreme Court) an office copy thereof

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shall be transmitted to the secretary at the same time as the instrument appointing the proxy. A.D. 1937.

PART IV.
—cont.
Joint
holders.

22. Notwithstanding anything in the Companies Clauses Consolidation Act 1845 where several persons are jointly entitled to and registered as holders of any shares or stock of the undertakers to which voting rights are attached any one of those persons may vote at any meeting at which holders of shares or stock of the same class are entitled to vote either personally or by proxy in respect of the shares or stock as if he were solely entitled thereto but if more than one of the joint holders be present at any meeting personally or by proxy that one of the said persons so present whose name stands first on the register in respect of the shares or stock shall alone be entitled to vote in respect thereof Several executors or administrators of a deceased member of the undertakers in whose name any share or stock stands shall for the purposes of this section be deemed joint holders thereof.

23. The undertakers shall not be bound to see to the execution of any trust whether express implied or constructive to which any stock or debenture stock of the undertakers may be subject and the provisions of section 20 of the Companies Clauses Consolidation Act 1845 shall mutatis mutandis extend and apply to any stock or debenture stock of the undertakers as if such stock or debenture stock were shares to which that section applies. Under-takers not bound to regard trusts.

24. Notwithstanding anything in the Companies Clauses Consolidation Act 1845 it shall not be obligatory upon the undertakers— Register of shareholders and shareholders' address book.

(a) to keep separately a register of shareholders and a shareholders' address book but in lieu thereof the undertakers may if they think fit keep one register only containing such particulars as are required by the said Act to be entered in the register of shareholders and the shareholders' address book respectively; or

(b) to authenticate by the affixing of their common seal or otherwise the register of shareholders or any register which the undertakers may keep in lieu thereof under the powers of this section.

25. Notwithstanding anything in section 10 of the Companies Clauses Consolidation Act 1845 the undertakers may substitute for the shareholders' address book provided under that section a card or other index of a type to be approved by the auditors of the undertakers containing the names and addresses of the several shareholders of the undertakers and that section in its Substitution of card index for shareholders' address book.

A.D. 1937. application to the undertakers shall be read and have effect accordingly.

PART IV.

—cont.

Closing of
transfer
books.

26.—(1) The directors may close the register of transfers for a period not exceeding fourteen days previous to the payment of any interim dividend on any ordinary or preference shares or stock of the undertakers and they may close the registers of transfers of mortgages and debenture stock for a period not exceeding fourteen days previous to each date at which the interest thereon shall be payable and the directors may in any such case fix a day for the closing of any register which they are authorised to close under the provisions of this section.

(2) Seven days' notice of the closing of any such register shall be given by advertisement in a newspaper circulating within the limits within which the undertakers are for the time being authorised to supply water.

(3) Any transfer of shares or stock or mortgages or debenture stock lodged for registration with the undertakers while the register of transfers of such shares stock or security is so closed shall as between the undertakers and the person claiming under any such transfer but not otherwise be considered as made subsequently to the payment of any such dividend or interest as the case may be.

As to
appoint-
ment of
managing
director.

27.—(1) The directors may appoint one of their body to be managing director either for a fixed term or without any limitation as to time and may remove or dismiss him from office and appoint another in his place.

(2) A managing director shall not while holding that office be subject to retirement by rotation and shall not be taken into account in determining the rotation of retirement of directors but if he ceases to hold the office of director from any other cause he shall thereupon cease to be managing director.

(3) The remuneration of a managing director shall from time to time be fixed by the directors and may be by way of salary or commission or participation in profits or by all or any of those modes.

(4) The directors may entrust to and confer upon a managing director such of the powers exerciseable by the directors and subject to such conditions as they think fit and may from time to time revoke withdraw alter or vary all or some of such powers.

Vacation of
office of
director.

28. If any of the directors shall be made bankrupt or shall go to reside abroad for a longer period than six months or shall become of unsound mind or shall neglect to attend the meetings of directors for twelve months (unless such neglect to attend be occasioned by illness or by any other reasonable cause allowed by

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the directors) then in any of the cases aforesaid the office of such director shall become vacant and thenceforth he shall cease from voting or acting as a director.

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PART IV.
—cont.

29.—(1) No person not being a director retiring by rotation and offering himself or being proposed for re-election or not being a candidate for election by the directors to fill a casual vacancy shall be capable of being elected a director of the undertakers unless notice in writing that such person intends to offer himself or will be proposed for the office of director shall have been given to the secretary or left at the principal office of the undertakers seven days at least before the day of election and the secretary shall during such seven days and on the day of election cause to be displayed a copy of every such notice so delivered in some conspicuous place in such office.

Notice of
candidature
of or of
opposition to
re-election of
director.

(2) In the case of a retiring director notice of opposition to his re-election shall be given in like manner.

(3) No person shall be eligible to be elected a director at any general meeting of the undertakers unless he shall have been the holder of the qualifying amount of shares or stock for at least two months prior to his election.

30.—(1) It shall be lawful for the undertakers at any time by resolution passed at a general meeting to decide that the accounts of the undertakers shall be audited by a single auditor or by a firm of accountants and notwithstanding anything in the Companies Clauses Consolidation Act 1845 it shall not be necessary for the auditors or the auditor of the undertakers or the members of such firm to hold any shares or stock in the capital of the undertakers.

Auditors.

(2) No person not being a retiring auditor of the undertakers shall be eligible to be elected at any general meeting as auditor of the undertakers unless notice be given to the secretary or left at the principal office of the undertakers seven days at least before the date of the meeting that such person will be proposed for election as an auditor of the undertakers. The secretary shall on receipt of any such notice send a copy thereof to the retiring auditor and during such seven days and the day of election keep a copy of the notice fixed in some conspicuous place in the said office.

(3) If any auditor of the undertakers dies or resigns the directors may appoint another auditor in his place and any auditor so appointed shall hold office until the next ordinary meeting.

31. In addition to the powers which the directors may exercise under the Companies Clauses Acts 1845 to 1888 they may determine the remuneration of the secretary.

Directors may
determine
remuneration
of secretary.

A.D. 1937.

PART V.

SUPPLY OF WATER &C.

Rates
 leviable
 half-yearly.

32. Notwithstanding anything in the Waterworks Clauses Act 1847 the rates leviable by the undertakers for water supplied for domestic purposes shall if the undertakers so determine be paid half-yearly one quarter in arrear and one quarter in advance on the first day of April and on the first day of October :

Provided that any person who shall occupy any premises during part only of any half-year in respect of which the rate is so required to be paid shall be liable for a part of the rate proportionate to that part of the half-year and if any such person shall have paid to the undertakers a greater part of such rate the balance shall be refunded to him by the undertakers.

Special
 terms for
 supplies
 to caravans
 shacks &c.

33.—(1) Notwithstanding anything in the existing Acts and orders a person shall not be entitled to demand or continue to receive from the undertakers a supply of water to any caravan shack hut tent or other like structure unless he has—

- (a) agreed with the undertakers to take a supply of water by measure and to pay to the undertakers such minimum annual sum as will give them a reasonable return on the capital expenditure incurred by them in providing the supply or supplies required by him and will cover other standing charges incurred by them in order to meet the possible maximum demand for his caravan shack hut tent or structure and will yield a reasonable return on the cost of the water consumed or used by him ; and
- (b) secured to the reasonable satisfaction of the undertakers by way of deposit or otherwise payment of such a sum as may be reasonable having regard to the possible maximum demand of such person for his caravan shack hut tent or structure.

(2) The sum to be so paid and the security to be so given shall be determined in default of agreement by a court of summary jurisdiction who may also order by which of the parties the costs of the proceedings before them shall be paid and the decision of the court shall be final and binding on all parties.

(3) Notwithstanding anything in this section or any other provisions of the existing Acts and orders or this order the undertakers shall not (unless so authorised by the Minister) supply water to any caravan shack hut tent or other like structure if the local authority for the district in which such caravan shack hut tent or other like structure is situate objects to the supply being given.

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34. Where a person who takes a supply of water for domestic purposes desires to use water for a swimming bath or bathing pool the undertakers may require that all water required for such swimming bath or bathing pool shall be taken by measure and paid for accordingly.

PART V.

—cont.

Supplies to swimming baths and bathing pools to be by measure.

35. Notwithstanding anything in the existing Acts and orders the undertakers shall be entitled to charge for each supply of water by measure (other than a supply given under subsection (3) of section 45 (Charges for hose pipes and refrigerating apparatus) or section 46 (Supply to houses partly used for trade) of the Act of 1928) such minimum sum not exceeding fifteen shillings as they may prescribe in respect of the water supplied in any quarter of a year.

Minimum charge for supply by measure.

36. If a justice is satisfied on complaint by any officer of the undertakers that any person is quitting or about to quit any premises to which the undertakers supply water and has failed to pay on demand any water rate which may be due from him and intends to evade payment of the same by departing from the said premises the justice may in addition to issuing a summons for non-payment of the same issue a warrant under his hand authorising the said officer to seize forthwith and detain the goods and chattels of such person until the complaint is determined upon the return of the summons.

Recovery of rates from persons about to vacate premises.

37.—(1) In addition to the powers conferred by section 53 (Byelaws for preventing waste &c. of water) of the Act of 1928 the undertakers may make byelaws as to the testing and stamping of taps cocks ferrules valves flushing cisterns flushing apparatus and other similar fittings and apparatus and prescribing the charge to be made for such testing and stamping and all such byelaws shall be subject to the provisions contained in subsections (2) (3) (4) (5) (6) (7) and (10) of section 250 and in sections 251 and 252 of the Local Government Act 1933 and those sections shall for the purposes of this section be construed as if the undertakers were a local authority within the meaning of those sections and the secretary of the undertakers were the clerk of the local authority The confirming authority for the purposes of the said section 250 shall be the Minister.

Extension of powers for preventing waste &c. of water.

23 & 24
Geo. 5. c. 51.

(2) Nothing in subsection (1) of this section or in any byelaws made thereunder shall apply to any pipes or fittings used on any premises which form part of the railway of a railway company so long as such fittings do not cause waste undue consumption misuse or contamination of water which is supplied by the undertakers.

(3) Any person who shall forge or counterfeit any stamp or mark used by the undertakers or by the authority of the undertakers for any of the purposes of this section or who shall

[Ch. lxxiii.] *Ministry of Health* [1 EDW. 8. &
Provisional Order Confirmation 1 GEO. 6.]
(Maidenhead Water) Act, 1937.

A.D. 1937. use or supply anything marked with any such stamp or mark
 — knowing the same to be forged or counterfeited shall for every
 PART V. such offence be liable to a penalty not exceeding twenty pounds.
 —cont.

PART VI.

SUPPLEMENTAL.

Inquiries
 and
 expenses.

38. The Minister may hold any inquiry which he may deem
 necessary for the purposes of this order and section 290 of the
 Local Government Act 1933 shall apply as if the undertakers
 were a local authority.

Costs of
 order.

39. All costs charges and expenses of and incidental to the
 application for this order and the preparation making and con-
 firmation of this order shall be paid by the undertakers and may
 in whole or in part be defrayed out of revenue.

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